

Court determines that Plaintiff has complied with the Court's orders.

Good cause appearing, the Court makes the following orders:

1. The Court orders the release of the 5% retention of attorney's fees in the amount of \$ \$18,976,72 to Plaintiff's Counsel.
2. The Court orders the release of \$198,209.42 representing uncashed checks that remains to be distributed to Legal Aid at Work, the designated *cy pres*.
3. Disbursements shall be made no later than thirty (30) days from the date of this ruling.
4. No appearance is required at the hearing on August 5, 2026.

14. 9:00 AM CASE NUMBER: MSC20-02432
CASE NAME: PLASCENIA VS THE COUNTER WALNUT CREEK LP
COMPLIANCE HEARING ON SETTLEMENT SET BY THE COURTROOM.
FILED BY:

TENTATIVE RULING:

This Compliance Hearing was set by the Court to determine compliance with the Court's Order re Final Approval of Class Action settlement filed on August 11, 2025.

Upon review of the compliance report filed by Plaintiffs Pedro Negrete Plascencia and Nicole Anaya, individuals and on behalf of other persons similarly situated, through Class Counsel, and the declaration filed by Mayra Gonzalez of Phoenix Settlement Administrators certifying disbursement filed on July 28, 2026, the Court determines that Plaintiff has complied with the Court's orders.

Good cause appearing, the Court makes the following orders:

1. The Court orders the release of the 5% retention of attorney's fees in the amount of \$ \$3,582.98 to Plaintiffs' Class Counsel.
2. The Court orders the release of \$40,203.85 representing uncashed checks that remains to be distributed to Legal Aid at Work, the designated *cy pres*.
3. Disbursements shall be made no later than thirty (30) days from the date of this ruling.
4. No appearance is required at the hearing on August 5, 2026.

15. 9:00 AM CASE NUMBER: MSC21-01549
CASE NAME: HALATOA VS DIABLO COUNTRY CLUB
FINAL APPROVAL SET BY THE COURTROOM
FILED BY:

TENTATIVE RULING:

Summary

Plaintiffs Sunia Halatoa, Harmesh Bangar, individually and on behalf of others similarly situated, filed a

Motion for Final Approval Order and Judgment of the PAGA settlement against Defendant Diablo Country Club. The Motion is granted as set forth herein. No appearance is required at the August 5, 2026 hearing, provided that Plaintiff's counsel complies with the proposed order.

Background

The Settlement Agreement resolves a class action and Private Attorneys General Act ("PAGA") action brought by Plaintiff Harmesh Bangar against Defendant Diablo Country Club. The Settlement Class consists of all individuals employed by Defendant in California classified as non-exempt employees at any time during the Class Period of July 26, 2017 through December 15, 2025, encompassing approximately 830 Class Members. The Aggrieved Employee group for PAGA purposes includes non-exempt employees during the PAGA Period of July 15, 2020 through December 15, 2025. Defendant has agreed to pay a Gross Settlement Amount of \$840,000.00 on a non-reversionary basis, with the employer's share of payroll taxes paid separately.

The Gross Settlement Amount is allocated as follows: (1) \$280,000.00 (one-third of the Gross Settlement Amount) to Class Counsel as attorneys' fees; (2) \$15,286.35 to Class Counsel for reimbursement of litigation costs and expenses; (3) \$7,500.00 to Plaintiff Bangar as a Class Representative Service Payment; (4) \$10,500.00 to Phoenix Settlement Administrators for administration expenses; and (5) \$125,000.00 for PAGA penalties. Of the PAGA penalties, 75% (\$93,750.00) shall be paid to the California Labor and Workforce Development Agency, and 25% (\$31,250.00) shall be distributed to Aggrieved Employees. The remaining Net Settlement Amount of approximately \$401,713.65 shall be distributed to Participating Class Members (those who do not opt out).

Individual Class Payments shall be calculated on a *pro rata* basis according to Workweeks worked during the Class Period. The Settlement Administrator shall divide the Net Settlement Amount by the total Workweeks of all Participating Class Members to determine a Final Workweek Value, then multiply each Participating Class Member's individual Workweeks by that value. Individual PAGA Payments shall be calculated similarly based on PAGA Pay Periods worked during the PAGA Period, with the \$31,250.00 allocated to Aggrieved Employees divided by total PAGA Pay Periods. Based on current estimates, the highest Individual Class Payment is approximately \$3,388.29 and the average is approximately \$478.31; the highest Individual PAGA Payment is approximately \$285.23 and the average is approximately \$47.86.

Individual Class Payments shall be allocated as 20% wages (reported on IRS Form W-2) and 80% non-wages, expense reimbursement, interest, and penalties (reported on IRS Form 1099), with appropriate tax withholdings deducted from the wage portion. Individual PAGA Payments shall be allocated as 100% penalties (reported on IRS Form 1099). Defendant shall pay the employer's share of payroll taxes on the wage portion in addition to the Gross Settlement Amount. All payments shall be issued within fourteen days of the funding of the Gross Settlement Amount, and checks shall remain valid for 180 days from mailing.

The Court-approved Class Notice was mailed to all 830 Class Members on February 2, 2026, with a 60-day response deadline of April 3, 2026. The Notice informed Class Members of their right to object, opt out, or dispute their Workweeks/PAGA Pay Periods. As of the Response Deadline, the Settlement Administrator received zero Requests for Exclusion, zero Notices of Objection, and zero Workweek disputes. One additional Class Member was identified during the response period and provided

notice, bringing the total to 830 Class Members.

The Settlement is non-reversionary; no portion of the Gross Settlement Amount shall revert to Defendant. Any Individual Settlement Payment or Individual PAGA Payment checks that are not cashed within 180 days shall be canceled, and the associated funds shall be distributed as cy pres to California Rural Legal Assistance, Inc. All Participating Class Members and Aggrieved Employees shall be bound by the Settlement terms regardless of whether they negotiate their checks.

The Settlement constitutes a full and final resolution of all Released Class Claims and Released PAGA Claims, including claims arising under the California Labor Code and Business and Professions Code sections alleged in the operative pleadings. The Settlement is the product of arm's-length negotiations conducted through a full-day mediation with experienced mediator Todd A. Smith, Esq., following extensive formal and informal discovery, investigation, and exchange of thousands of pages of documents and data between the Parties.

Analysis

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees \$280,000.00, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme

Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.*, at 505.)

Counsel's declaration indicates that 287.50 hours of work were expended by the class counsel in this case, at a blended rate of \$850 per hour. This results in an imputed multiplier of 1.15x. This multiplier is relatively standard for this type of case, in this Court's experience.

Litigation costs of \$15,286.35 are reasonable and are approved. Settlement administration costs of \$10,500.00 are reasonable and are approved. The requested representative payment of \$7,500 for plaintiff is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiff attests that she spent time speaking with my attorneys about the case, providing attorneys with documents and information concerning the case, and also describing policies, practices, and procedures of Defendant.

Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate.
2. The motion is **granted**.
3. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order, attaching a copy of this ruling.
4. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
5. Plaintiffs' counsel is ordered to schedule a compliance hearing with the clerk of the court no later than one year from the date of this hearing and is ordered to submit a compliance statement at least ten (10) court days before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.
6. No appearance is required at the hearing on August 5, 2026.

16. 9:00 AM CASE NUMBER: MSC21-01737

CASE NAME: AUSTIN CUPIT VS IMPERIAL PARKING

FINAL APPROVAL HEARING SET BY THE COURTROOM

FILED BY:

TENTATIVE RULING:

Summary

Plaintiffs Austin Cupit and Andrew Caro ("Plaintiffs") bring this Motion for Final Approval of Class Action and PAGA settlement with Defendants Imperial Parking (U.S.), LLC, AmeriPark, LLC, Lanier Parking Meter Services, LLC and REEF Global, LLC. ("Defendants"), together referred to as Parties. The Motion is granted provided Counsel complies with the proposed order herein. No appearance is